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U.S. Citizenship and Immigration Services
Midwest Benefits Center
P.O. Box 810442
Grandview Heights, MO 64099

REQUEST FOR EVIDENCE

Notice Type	Request for Evidence
Receipt Number	IOE0937461820
Notice Date	February 11, 2025
Case Type	I-130, Petition for Alien Relative
Received Date	September 5, 2024
Priority Date	September 5, 2024
Petitioner	BRENNAN, NATHANIEL OWUSU
Beneficiary	DUMITRESCU, LARISA MIHAELA — A209 556 013
Officer ID	MBC-4471
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RESPOND BY: MAY 12, 2025

CASTELLANOS & VERDE LLC
ATTN: IMANI R. CASTELLANOS, ESQ.
1401 MARLOWE TOWER, SUITE 620
COLUMBUS, OH 43215

WHY WE SENT YOU THIS NOTICE

We reviewed the Form I-130, Petition for Alien Relative, that you filed on behalf of the beneficiary named above. We need more evidence before we can finish processing your petition. This notice explains what evidence we need and how to send it to us.

To establish eligibility for the classification of spouse of a U.S. citizen, you must show that (1) you are a U.S. citizen, (2) you and the beneficiary entered into a marriage that is valid where it took place, (3) any prior marriages of either party were legally terminated before your marriage, and (4) the marriage was entered into in good faith and not for the purpose of evading the immigration laws.

WHAT WE NEED FROM YOU

Submit the evidence described in the numbered items below. You may submit copies of documents unless we specifically ask for an original or a certified copy. Do not send us original documents unless this notice asks for them; we may not be able to return them.

Any document in a language other than English must be accompanied by a full English translation, together with the translator's signed certification that the translation is complete and accurate and that the translator is competent to translate from that language into English.

ITEM 1 — EVIDENCE OF THE PETITIONER'S UNITED STATES CITIZENSHIP

Submit one of the following, in the form of a legible copy:

- a. A birth certificate issued by a civil registrar, vital statistics office, or other civil authority showing that the petitioner was born in the United States;
- b. The biographic data page of the petitioner's unexpired U.S. passport;
- c. A Certificate of Naturalization or Certificate of Citizenship; or
- d. Form FS-240, Consular Report of Birth Abroad.

ITEM 2 — EVIDENCE OF COMMINGLED FINANCES AND SHARED FINANCIAL RESPONSIBILITY

Submit documentary evidence that you and the beneficiary hold financial assets and obligations jointly. Examples of evidence you may submit include, but are not limited to:

- a. Statements for bank accounts held jointly, showing both names, the account number, the date the account was opened, and deposit and withdrawal activity;
- b. Federal income tax returns or IRS tax return transcripts showing that you and the beneficiary filed jointly;
- c. Insurance policies naming the other spouse as an insured party or as a designated beneficiary; and
- d. Any other documentation showing joint ownership of property or joint responsibility for debts.

ITEM 3 — EVIDENCE THAT YOU AND THE BENEFICIARY HAVE RESIDED TOGETHER SINCE YOUR MARRIAGE

The record indicates that you married on April 12, 2023, and that you and the beneficiary have resided together continuously since that date. The residence evidence in the record does not cover the full period claimed.

Submit documentary evidence of shared residence for the entire period from April 12, 2023 to the present, and in particular for the period April 2023 through July 2024.

Evidence you may submit includes:

- a. A residential lease or rental agreement, or a mortgage or deed, listing both you and the beneficiary as parties, and covering the period in question;
- b. Utility, telephone, internet, or similar service bills addressed to both of you at the same address, covering the period in question;
- c. Correspondence from a government agency, employer, bank, school, or insurer addressed to each of you separately at the same address, covering the period in question; and
- d. If you resided at more than one address, evidence covering each address, with the dates of residence at each.

A written statement alone is not sufficient to satisfy this item. If joint documentary evidence does not exist for part of the period, explain in writing why it does not exist and submit whatever secondary evidence is available for that period.

ITEM 4 — PHOTOGRAPHIC EVIDENCE OF THE RELATIONSHIP

Submit photographs of you and the beneficiary together. The photographs should:

- a. Cover a period of time rather than a single occasion;
- b. Include photographs taken with family members, friends, or other third parties; and
- c. Be individually labeled with the date the photograph was taken, the place it was taken, and the name of each person appearing in it.

ITEM 5 — AFFIDAVITS FROM THIRD PARTIES WITH PERSONAL KNOWLEDGE OF THE MARRIAGE

Submit at least two (2) sworn or affirmed affidavits from persons who have personal knowledge of your marital relationship. Each affidavit must contain all of the following:

- a. The affiant's full legal name;
- b. The affiant's date of birth and place of birth;
- c. The affiant's current residential address;
- d. A statement of how the affiant acquired personal knowledge of your relationship, including how long and in what circumstances the affiant has known you and the beneficiary; and
- e. Full information about, and complete details of, the events described, signed and dated by the affiant.

An affidavit that omits any of the items listed above will not be given evidentiary weight.

ITEM 6 — EVIDENCE THAT THE BENEFICIARY'S PRIOR MARRIAGE WAS LEGALLY TERMINATED

Part 4 of the Form I-130 you submitted states that the beneficiary was previously married and that the prior marriage ended before your marriage on April 12, 2023. The record does not contain any document establishing that the prior marriage was legally terminated.

Submit a legible copy of the final legal document terminating the beneficiary's prior marriage, such as:

- a. A final divorce decree bearing the seal or stamp of the issuing court, together with a certified English translation if it is not in English;
- b. A certificate or decree of annulment; or
- c. A death certificate of the beneficiary's prior spouse.

The document must show the date on which the prior marriage legally ended.

HOW TO SEND US YOUR RESPONSE

1. Place the enclosed RFE response cover sheet on top of your response. Do not separate it from the rest of your response.
2. Submit all of the requested evidence together, in one package. We will make a decision on your petition based on the record as it stands after we receive your response. We will not send a second request for the same evidence.
3. Mail your complete response to the address printed at the top of this notice.

WHAT HAPPENS IF YOU DO NOT RESPOND

If we do not receive your response by May 12, 2025, we will make a decision on your petition based on the evidence already in the record. This may result in denial of the petition. A denial is not appealable to the Administrative Appeals Office, although you may be able to file a motion to reopen or reconsider.

Submitting a response does not guarantee approval. If the evidence you submit does not establish eligibility, we may deny the petition or request additional evidence.

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